

may bring an action against the devisee, and compel him to answer whether there existed any such understanding between him and the testator; and if the defendant acknowledge it, he will be decreed a trustee for the plaintiff, and to convey the estate to him accordingly (*b*).

12. Devise may be good as to one and void as to another. —

Where a devise is to several persons as tenants in common, it may be void as to one to whom the testator's unlawful intention was communicated in his lifetime, and good as to the others who were not privies to his intention (*c*). But if there be a joint devise to two, one of whom has by active fraud procured the devise, the other cannot claim under the fraud, but the devise will be void as to both (*d*).

13. Devise not void because devisee means to execute the unlawful trust. — Where no trust is imposed by the will, and no communication was made in the testator's lifetime, the devise will be good, although the devisee may, notwithstanding the absence of legal obligation, be disposed from the bent and impulse of his own mind, to carry out what he believes to have been the testator's wishes (*e*).

[*64] ***14. An engagement to hold an indefinite part of the estate upon an unlawful trust. —** A devise may be a beneficial one upon the face of a will, but there may have existed an understanding between the testator in his lifetime and the devisee, that, without any particular part of the estate being specified, such portions of it as the devisee, in

(*b*) *Adlington v. Cann*, Barn. 130; *Springett v. Jenings*, 10 L. R. Eq. 488; *Burr v. Miller*, W. N. 1872, p. 63; *King v. Lady Portington*, 1 Salk. 162; *Muckleston v. Brown*, 6 Ves. 52; *Stickland v. Aldridge*, 9 Ves. 516; *McCormick v. Grogan*, 1 I. R. Eq. 313; 4 L. R. H. L. 82; and see *Attorney-General v. Duplessis*, Park. 144; *Russell v. Jackson*, 10 Hare, 204; *Tee v. Ferris*, 2 K. & J. 357; *Lomax v. Ripley*, 3 Sm. & G. 48; *Carter v. Green*, 3 K. & J. 591; *Burney v. Macdonald*, 15 Sim. 6; *Moss v. Cooper*, 1 J. & H. 352; *Baker v. Story*, W. N. 1874, p. 211.

(*c*) *Tee v. Ferris*, 2 K. & J. 357; [*Rowbotham v. Dunnett*, 8 Ch. D. 430]; and see *Burney v. Macdonald*, 15 Sim. 6; *Moss v. Cooper*, 1 J. & H. 352.

(*d*) *Russell v. Jackson*, 10 Hare, 204; and see *Carter v. Green*, 3 K. & J. 603; *Burney v. Macdonald*, 15 Sim. 6.

(*e*) *Wallgrave v. Tebbs*, 2 K. & J. 313; *Lomax v. Ripley*, 3 Sm. & G. 48; *Jones v. Badley*, 3 L. R. Eq. 635, reversed, 3 L. R. Ch. App. 362; and see *Carter v. Green*, 3 K. & J. 591; [*Rowbotham v. Dunnett*, 8 Ch. D. 430.]